

M/s K.K. Duplex & Paper Mills Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 July 2014 · WRIT - C No. 29504 of 2014 · **Writ dismissed as withdrawn with liberty to file a better petition.**

HEADNOTE

Writ challenging the vires of Clauses 4.6(h)(i) and 4.21(a) of the U.P. Electricity Supply Code, 2005 and Chapter 4 of the Cost Data Book (System Loading Charges) dismissed as withdrawn, with liberty to file a better petition, after the Court found the vires plea incomplete.

FACTUAL SUMMARY

M/s K.K. Duplex & Paper Mills Pvt. Ltd. petitioned Paschimanchal Vidyut Vitran Nigam Ltd. challenging the vires of Clauses 4.6(h)(i) and 4.21(a) of the U.P. Electricity Supply Code, 2005 and Chapter 4 of the UPERC Cost Data Book for recovery of System Loading Charges. A roster objection was raised that the vires challenge was not cognizable before that Bench. After an office report and adjournment, the Court heard the matter and found the vires plea incomplete. Counsel then sought to withdraw and file a better writ petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.21(a)

vires of Supply Code and Cost Data Book (system loading charges)

HOLDING

The writ petition challenging the vires of Clauses 4.6(h)(i) and 4.21(a) of the U.P. Electricity Supply Code, 2005 and Chapter 4 of the Cost Data Book for recovery of System Loading Charges was dismissed as withdrawn, with liberty to file a better writ petition, after the Court observed that the vires plea was incomplete. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VIRES OF CLAUSES 4.6(H)(I) AND 4.21(A) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 AND CHAPTER 4 OF THE COST DATA BOOK FOR SYSTEM LOADING CHARGES

Not decided on merits. The petitioner withdrew after the Court found the vires plea incomplete, with liberty to file a better writ petition. Roster cognizability of the vires challenge was also left unresolved. ¶ 3